

Land Use / Zoning

Planning and
Development

California Senate Bill 35 (SB-35) applies in cities that are not meeting their Regional Housing Need Allocation (RHNA) goal. Codified in Government Code Section 65913.4, SB 35 requires local entities to streamline the approval of certain housing projects by providing a ministerial approval process.

Currently, Berkeley is not meeting the RHNA goal for affordable housing below 80% of the Area Median Income (AMI).

Therefore, at this time, projects providing a minimum of 50% of the project units on-site as affordable housing at 80% AMI are eligible for streamlining in Berkeley, provided they meet all of the eligibility criteria identified in this application form.

SB 35 Project Submittal Requirements

<https://tinyurl.com/wzlco4v>

Land Use / Zoning

1947 Center Street
2nd Floor
Berkeley, CA 94704
Phone: 510-981-7410
TDD: 510-981-7450
planning@cityofberkeley.info

SB 35 Development Application

(This box for staff use only.)

DATE STAMP HERE

PLN20 ____ - ____

Project Site Zoning: _____

Intake Planner: _____

Project Information:

Project Address: 1740 San Pablo Avenue Unit/Suite #: _____

Assessor Parcel Number: 058-2127-14-3

Project Description: Demolition of the existing 1-story commercial structure to develop

a 6-story, 54 unit, mixed-use building with 100% affordable housing, to be processed

under SB-35 (which mandates ministerial approval) and Sections 65915(d)(2) and

65915(f)(3)(D)(ii) of the State Density Bonus, which allows for 33' of additional height and

no density limit for 100% affordable projects within one-half mile of transit.

Property Owner's Name: 1740 San Pablo Housing LP

Owner's Mailing Address: 600 California St. #900, San Francisco CA 94108

Phone #: 415-321-4062

Email: ktraynor@bridgehousing.com

Applicant's Name (or enter "same"): Isaiah Stackhouse

Applicant's Mailing Address: 2421 Fourth St., Berkeley CA 94710

Phone #: 510-649-1414

Email: isaiah@trachtenbergarch.com

Under penalty of perjury, I certify that:

- (1) the application materials are true and complete to the best of my knowledge;**
(2) the attached paper and electronic copies of this application are the same; and
(3) I agree to pay all expenses associated with this application.

(*Owner's signature, or signed letter authorizing applicant to apply on owner's behalf, is required for all applications)

Applicant Signature:



Printed Name:

Isaiah Stackhouse

Date: 7/20/2023

Owner Signature:



Printed Name:

Smitha Seshadri

Date: 7/31/2023 | 9:22 AM PDT

TRACHTENBERG ARCHITECTS

2421 Fourth Street Berkeley, CA 94710

phone: 510.649.1414

www.TrachtenbergArch.com

June 27, 2023

Attn: Sharon Gong
Land Use Planning
City of Berkeley
1947 Center St
Berkeley, CA 94704

RE: SB35 modifications for 1740 San Pablo, ZP2020-0049

Dear Sharon,

We are submitting modifications to the SB35 submittal that was approved on March 5, 2021. Please see a summary of changes below along with the attached updated compliance chart.

SB35 Modifications:

- Project use to change from residential to mixed use
- 896 sf of residential lobby space at Southeast corner to be changed to commercial space
- Maximum building height increased by 1'-6"
- Previous approved concession for parking reduction has been removed as parking is no longer required per California State AB-2097 (See attached revised Density Bonus Statement)

Per the attached revised compliance chart, there are no changes to project compliance and the project continues to fully comply with all SB35 objective standards.

If you have any questions or comments, please feel free to contact me at (510) 649-1414 x124.

Sincerely,



Isaiah Stackhouse, Principal
TRACHTENBERG ARCHITECTS

1740 San Pablo Large-Family Affordable Housing

1.D. Compliance with Objective Zoning Standards

Under SB 35, the only applicable standards are those “that involve no personal or subjective judgment by a public official and are uniformly verifiable by reference to an external and uniform benchmark or criterion available and knowable by both the development applicant or proponent and the public official prior to submittal.” Gov. Code § 65913.4 (a)(5).

Projects that comply with objective standards cannot be required to obtain a discretionary use permit. See Gov. Code § 65913.4(a).

See Gov. Code § 65913.4(a)(5) (consistency with objective standards is determined after “excluding any additional density or any other concessions, incentives, or waivers of development standards granted pursuant to the Density Bonus Law in Section 65915”).

Table 2: Chapter 23E.04 – Lot and Development Standards			
Section 23E.04.050 Special Yard Requirements for C-Lots Abutting Residential Zones			
Provision	Applicability	Compliance	Modifications (6/27/2023)
A. Any structure that is located in a commercial District that abuts or confronts a lot or lots in a residential District shall conform to the following yard setback requirements unless otherwise specified by the provisions of an individual District: B. The minimum width of any side yard shall be five (5) feet; C. The minimum depth of any rear yard shall be ten (10) feet, or ten percent (10%) of the depth of the lot, whichever is greater; D. The minimum depth of any front yard, or the minimum width of any side yard on the street side, shall be the same required yard as specified for the adjacent residential District. E. The Board may approve a Use Permit authorizing yards smaller than those required above if it finds that such smaller yard would provide greater privacy or improved amenity to a lot in the residential District. (Ord. 6478-NS § 4 (part), 1999)	Per the definitions, the front of a corner lot is the shorter of the two frontages. Therefore, the front of this corner lot is the Delaware frontage. The project site only abuts residential zones along the west property line, thus only the 5' side yard setback per 23E.04.050C.B applies.	Compliant. In the proposed project, the side yard of 10' exceeds the required 5' setback.	No change

Section 23E.04.060 Special Building Feature Requirements for C-Lots Abutting Residential Zones			
Provision	Applicability	Compliance	Modifications (6/27/2023)
A. For lots that are located in a commercial District that abuts or confronts a lot or lots in a residential District the following building features shall conform to the specified requirements, unless otherwise specified by the provisions of an individual District:	Applicable objective criteria. The parcel confronts a residential district lot to the west.	Compliant. See below.	No change
B. Display windows and customer entrances, other than required exits, shall be oriented in a manner so they do not face abutting lots in a residential District;	Applicable objective criteria. The parcel confronts a residential district lot to the west.	Compliant. There are no display windows or customer entrances facing the residential properties to the west. Instead, they are all located on the San Pablo side to the east.	No change
C. Exterior lighting shall be shielded in a manner which avoids direct glare onto abutting lots in a residential District;	Applicable objective criteria. The parcel confronts a residential district lot to the west.	Compliant. As will be reviewed for compliance by the Land Use Planner during Building Permit plan check, all exterior lighting shall be shielded and/or directed on site.	No change
D. A solid wall or fence, measuring six (6) feet in height from existing grade, shall be erected at the lot line of an abutting lot in a residential District in order to provide screening;	Applicable objective criteria. The parcel confronts a residential district lot to the west.	Compliant. There will be a 6' high fence screening the residentially zoned properties District.	No change
E. Exhaust air ducts shall be located or oriented in a manner which directs vented air flows away from any residential District, and equipment which mitigates odors shall be installed;	Applicable objective criteria. The parcel confronts a residential district lot to the west.	Compliant. As will be reviewed for compliance by the Land Use Planner during Building Permit plan check, exhaust air ducts shall be located or oriented in a manner which directs vented air flows away from any residential District, and equipment which mitigates odors shall be installed.	No change
Table 3: Chapter 23E.28 – Off-Street Parking and Transportation Services Fee			
Section 23E.28.070 Development Standards			
Provision	Applicability	Compliance	Modifications (6/27/2023)
B. Except in C-E and C-T Districts, Bicycle Parking shall be provided for new floor area or for expansions of existing industrial, commercial, and other non-residential buildings at a ratio of one space per 2,000 square feet of gross floor area.	Applicable objective criteria.	Compliant. 6 short-term bicycle parking spaces will be provided in bike racks along San Pablo.	No change to project compliance. Where the previous code did not require residential bicycle parking, the project as proposed in the building permit plans complies with the new code requirements. The project provides 56 residential spaces where 37 are required, and 6 commercial spaces where 1 is required.

Table 4: Chapter 23E.64 – C-W West Berkeley Commercial District Provisions

Section 23E.64.030 Uses Permitted

Provision	Applicability	Compliance	Modifications (6/27/2023)
A. The following table sets forth the permits required for each listed item. Each use or structure shall be subject to either a Zoning Certificate (ZC), an Administrative Use Permit (AUP), a Use Permit approved after a public hearing (UP(PH)) or is prohibited. - Dwelling Units – UP(PH) Subject to Development Standards under Section 23E.64.070 - Community Centers – UP(PH)	The requirement to seek a conditional use permit does not apply pursuant to SB 35. Projects that comply with objective standards cannot be required to obtain a discretionary use permit. <i>See</i> Gov. Code § 65913.4(a); <i>see also</i> HCD’s SB 35 Streamlined Ministerial Approval Draft Guidelines (9/28/18), § 300(b)(2).	Not applicable.	No change

Section 23E.64.040 Special Provisions: Designated Nodes

Provision	Applicability	Compliance	Modifications (6/27/2023)
C. The following locations, insofar as they are located within the C-W District, are designated as nodes subject to the requirements of Paragraphs D and E: 1. Gilman and San Pablo, including all lots with frontage on San Pablo Avenue between Harrison and Camelia Streets and all lots with frontage on Gilman Street between the eastern border of C-W District and 10th Street; 2. Cedar and San Pablo, including all lots with frontage on San Pablo Avenue between Virginia and Jones Streets; 3. University and San Pablo, including all lots with frontage on San Pablo Avenue between Hearst Street and (on the east side of San Pablo Avenue) Cowper Street (and the continued centerline of Cowper Street on the west side of San Pablo Avenue). Also including all lots on University Avenue between 9th Street and the eastern edge of the C-W District; 4. Dwight and San Pablo, including all lots with frontage on San Pablo Avenue between the point 100 feet north of Dwight Way and Parker Street and all lots with frontage on Dwight Way between the eastern edge of the C-W District and the point 135 feet west of San Pablo Avenue;	Not applicable. The parcel is not located in a designated node.	Not applicable. The parcel is not located in a designated node.	No change

5. Ashby and San Pablo, including all lots with frontage on San Pablo Avenue between Burnett Street (or the continued line of Burnett Street on the west side of San Pablo Avenue) and the City limit; 6. 4th Street and University, including all lots in the area of the C-W District bounded by 3rd Street on the west, 5th Street on the east, the northern border of the C-W District to the north and Addison Street to the south.			
D. All newly constructed main structures in designated nodes shall be at least two stories or 25 feet in height, except gasoline stations.	Not applicable. The parcel is not located in a designated node.	Not applicable. The parcel is not located in a designated node.	No change
E. The ground floor of buildings in designated nodes shall only be used for retail sales, personal/household services, banks, food and alcohol service, lodging, entertainment and assembly uses, gasoline/ automobile fuel stations, enclosed auto repair uses, new car dealers, enclosed used car dealers and required access to and lobbies serving upper-story uses. No food service drive-through is permitted on San Pablo.	Not applicable. The parcel is not located in a designated node.	Not applicable. The parcel is not located in a designated node.	No change
Section 23E.64.050 Construction of New Floor Area -- Requirements for Use Permits			
Provision	Applicability	Compliance	Modifications (6/27/2023)
B1. Except as provided in Sections 2 and 3, gross floor area of 5,000 square feet or more shall not be created unless a Use Permit is obtained from the Board; B2. Gross floor area of up to 7,500 square feet may be created with an Administrative Use Permit provided that the building is exclusively used for retail uses; B3. Gross floor area of up to 20,000 square feet may be created with an Administrative Use Permit provided that the building contains residential space and retail space which equals not less than 15% and not more than 33% of the gross floor area being created. Creation of new floor area includes construction of new buildings or Accessory Buildings; additions to existing buildings; or the installation of new floor or Mezzanine levels within or onto existing buildings. (Ord. 6478-NS § 4 (part), 1999)	The requirement to seek a conditional use permit does not apply pursuant to SB 35. Projects that comply with objective standards cannot be required to obtain a discretionary use permit. See Gov. Code § 65913.4(a); see also HCD's SB 35 Streamlined Ministerial Approval Draft Guidelines (9/28/18), § 300(b)(2).	Not applicable.	No change

Section 23E.64.060 Use Limitations			
Provision	Applicability	Compliance	Modifications (6/27/2023)
A. No commercial use shall operate except between the hours of 7:00 a.m. and 11:00 p.m. unless a Use Permit is obtained; provided, however, if the use is located within a designated node, the use may operate between 6:00 a.m. and 7:00 a.m. and/or 11:00 p.m. and 12:00 midnight with a Zoning Certificate.	Not applicable; no commercial use is proposed.	Not applicable; no commercial use is proposed.	No change to project compliance. The new commercial space will operate within the required time window.
Section 23E.64.070 Development Standards			
Provision	Applicability	Compliance	Modifications (6/27/2023)
A. The Floor Area Ration (FAR) shall not exceed three.	Applicable objective criteria. The lot is 14,204 sq. ft. and a FAR of three equates to 42,612 sq. ft.	Compliant. The Base Project FAR is under 3. As a project which meets the criteria of Section 65915(f)(3)(d)(ii) of the State Density Bonus, the proposed density bonus project is allowed an 80% density bonus, which equates to an allowable GFA of 76,702 and an FAR of 5.4 (see "Zoning Summary" on Sheet A0.1.) The proposed project totals 58,975 sq. ft. and results in a FAR of 4.15, which is well below the allowable.	No change
B. The height for a Main Building shall not exceed the following limits, and shall satisfy the following requirements: Residential Only: - Height – 40 ft. - Stories (number) - 3	Applicable objective criteria.	Compliant. The Base Project measures 3 stories & 40'-0". The proposed project contains 6 stories and reaches 66'-6' measured to the top of the parapet. The project will be requesting a waiver/ modification to exceed the height standard. Please see the Density Bonus statement for an explanation. As shown on A0.3, with the 80% Density Bonus, the project is eligible for up to 65 units but is proposing to be 1 floor lower with only 54 units.	No change to project compliance. By changing the building use to mixed-use, the base project height limits are increased to 50ft and 4 stories. With the 80% Density Bonus, the project is eligible for up to 72 units and 8 stories, which increases the level of compliance with the proposed project at 54 units and 6 stories. The parapet height has increased by 1'-6" which results in a building height of 68'-0".
C. No yards for Main Buildings, Accessory Buildings or Accessory Structures shall be required, except that: When the subject lot is adjacent to an abutting or confronting lot in a residential zone, the requirements of Section 23E.04.050 and 23E.04.060 shall apply for additional yard and building feature requirements.	Applicable objective criteria; see 23.04.050 and 23E.04.060 below.	Compliant; see 23.04.050 and 23E.04.060.	No change

Section 23E.64.070 Development Standards			
Provision	Applicability	Compliance	Modifications (6/27/2023)
D. Each lot shall contain the following minimum useable open space areas: 1. Forty square feet of usable open space for each dwelling unit.	Applicable objective criteria. The project includes 54 units, which requires 2,160 sq. ft. of Usable Open Space.	Compliant. The base project provides 1,760 SF of open space, exceeding the 1,440 SF required. The proposed density project is using one of four (4) concessions granted to 100% affordable projects by the State Density Bonus to reduce the open space requirement to 1,484 sq. ft.	No change. No open space is required for the new commercial space, and no change to the proposed number of units.
Section 23E.64.070 Development Standards			
Provision	Applicability	Compliance	Modifications (6/27/2023)
E. Subject to review and consultation with the Commission and the Board, the City Manager may promulgate and revise performance standards concerning dust, glare, noise, odor, vibration, hazardous materials or any other potential off-site environmental impacts. All uses shall be subject to these standards. (Ord. 7638-NS § 4, 2019; Ord. 6478-NS § 4 (part), 1999)	Requirements do not apply pursuant to SB 35 as they are non-objective standards.	Not applicable.	No change
Section 23E.64.080 Off Street Parking and Loading Requirements			
A. All parking shall be provided in accordance with the requirements of this section and Chapter 23E.28, except as set forth in this section.	See below.	See below.	
B. The district minimum standard parking requirement for commercial floor area is two spaces per 1,000 square feet of gross floor area. Uses listed in Table 23E.64.080 shall meet the requirements listed, for newly constructed floor area. Dwelling Units: One per unit, except as modified by provisions for shared parking in Section 23E.64.080.G.	Applicable objective criteria. The project includes 54 dwelling units, which will result in a requirement of 54 parking spaces.	Compliant. The Base Project provides all required parking spaces in an underground parking system. The project is using the second of four (4) concessions granted to 100% affordable projects by the State Density Bonus to reduce the off-street parking requirement from 54 to 0 spaces and eliminate the cost of the underground parking system shown in the Base Project.	No change to project compliance. Per California State AB-2097, parking is no longer required for any residential or commercial floor area for this site.
G. For multiple dwellings where the occupancy will be exclusively for persons over the age of 62 years, the number of required off-street parking spaces may be reduced to 25% of what would otherwise be required for multiple family dwelling use, subject to obtaining a Use Permit.	Not applicable.	Not applicable.	No change

Table 5: Chapter 14.78 - Design and Transportation Review—Multiple-Family, Public and Community Facilities, Office and Administrative, and Commercial Districts

14.78.020 - Requirement for administrative design review.

Provision	Applicability	Compliance	Modifications (6/27/2023)
A. No building permit shall be issued for any new main or accessory structure, or addition or alteration thereto within an R3, PCF, PUD, PC, OA or C district, until such construction has received administrative design review approval by the community development director or their designee. Window replacements, reroofing and rooftop venting and exhausting equipment, and mechanical equipment are exempt from this requirement. B. Whenever, as determined by the community development director or their designee, the construction, expansion or modification of a main or accessory structure may be in conflict with the design review findings contained in this chapter, the project shall be referred to the planning and transportation commission for action on the design review approval.	Under SB 35, the only applicable standards are those “that involve no personal or subjective judgment by a public official and are uniformly verifiable by reference to an external and uniform benchmark or criterion available and knowable by both the development applicant or proponent and the public official prior to submittal.” Gov. Code § 65913.4 (a)(5). Any required “design review or public oversight shall be objective and be strictly focused on assessing compliance with criteria required for streamlined projects, as well as any reasonable objective design standards published and adopted by ordinance or resolution by a local jurisdiction before submission of a development application, and shall be broadly applicable to development within the jurisdiction.” Gov. Code § 65913(c). The requirements listed under this section are not objective requirements as described above and are therefore not applicable.	Not applicable.	No change

Table 6: Chapter 23E.04 - Heights			
Section 23E.04.020 - Heights			
Provision	Applicability	Compliance	Modifications (6/27/2023)
B. Towers, antennas and poles used for the transmission of electricity, telephone, telegraph, cable television, or other messages; except for electromagnetic signals for cellular radiotelephone service and wireless telecommunications; and flag poles, chimneys, water tanks, heating and air conditioning equipment, skylights, solar energy equipment, vents, pipes and similar structures and necessary mechanical appurtenances may be built and used to a greater height than the limit established for the District in which the building is located. Wireless telecommunication antennas, other than those located within the public right-of-way, shall be subject to the height restrictions in Section 23C.17.060 and shall require a Use Permit or Administrative Use Permit. C. Any projection not listed in the foregoing paragraph is prohibited except upon issuance of an AUP, including, but not limited to, mechanical penthouses, elevator equipment rooms, and cupolas, domes, turrets, and other architectural elements which exceed a District's height limit. No such structure shall represent more than fifteen percent (15%) of the average floor area of all of the building's floors; and no tower or similar structure shall be used as habitable space or for any commercial purpose, other than that which may accommodate the mechanical needs of the building. (Ord. 6671-NS § 5 2001: Ord. 6478-NS § 4 (part), 1999)	Applicable objective criteria.	Compliant. Per the calculations on sheet A0.1, the elevator and stairs are less than 15% of the average floor area.	No change

TRACHTENBERG ARCHITECTS

2421 Fourth Street Berkeley, CA 94710

phone: 510.649.1414

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1740 San Pablo Large-Family Affordable Housing

Berkeley, CA 94702

June 27, 2023

Modifications to original statement shown in **red**

III.B.2. (a) Density Bonus Eligibility Statement

- Number of "base project" units: **39 Units**
- Number of affordable units and level of affordability: **100% affordable units (excluding the manager's unit, per State Density Bonus law)**

Unit count and levels of affordability are as follows:

	Common Denominator		City of Berkeley AHMF Ordinance		SB-35 / Density Bonus Requirements	
Total Units	54		54		54	
Manager's Unit	(no afford' req'd)		n/a		(no afford' req'd)	
Net Units	53		54		53	
	%	Number	%	Number	%	Number
Moderate-Income	19%	10	0%	0	20%	10.6
Low-Income	70%	37	10%	5.4	80%	42.4
Very-Low-Income	11%	6	10%	5.4	0%	0
SubTotal	100%	53	20%	10.8	100%	53
Manager's Unit	1					
Total Units	54					

- Households as defined in Section 50105 of the Health and Safety Code.
- Percent density bonus requested and allowed under Section 65915: **80%**
- Waivers or modifications of developments standards necessary to accommodate density bonus:
 - Increase the building FAR to 4.15 to allow for our proposed density.
 - Increase the maximum building height to **68'-0"** and 6 stories to allow for our proposed density.
- Explanation of why each waiver or modification is needed to accommodate density bonus:
Following the guidelines provided in the City's "Conceptual Approach to Implementing Density Bonus Law In Berkeley, February 22, 2013", the density bonus units are added to the Base Project which "reflects the proposed project's building separation, open space location, and parking location", via additional the following waivers or modifications to accommodate additional dwelling units:
 - The increased FAR, building height, & story count is required to allow for our proposed density.

III.B.2. (b) Request for Incentives or Concessions

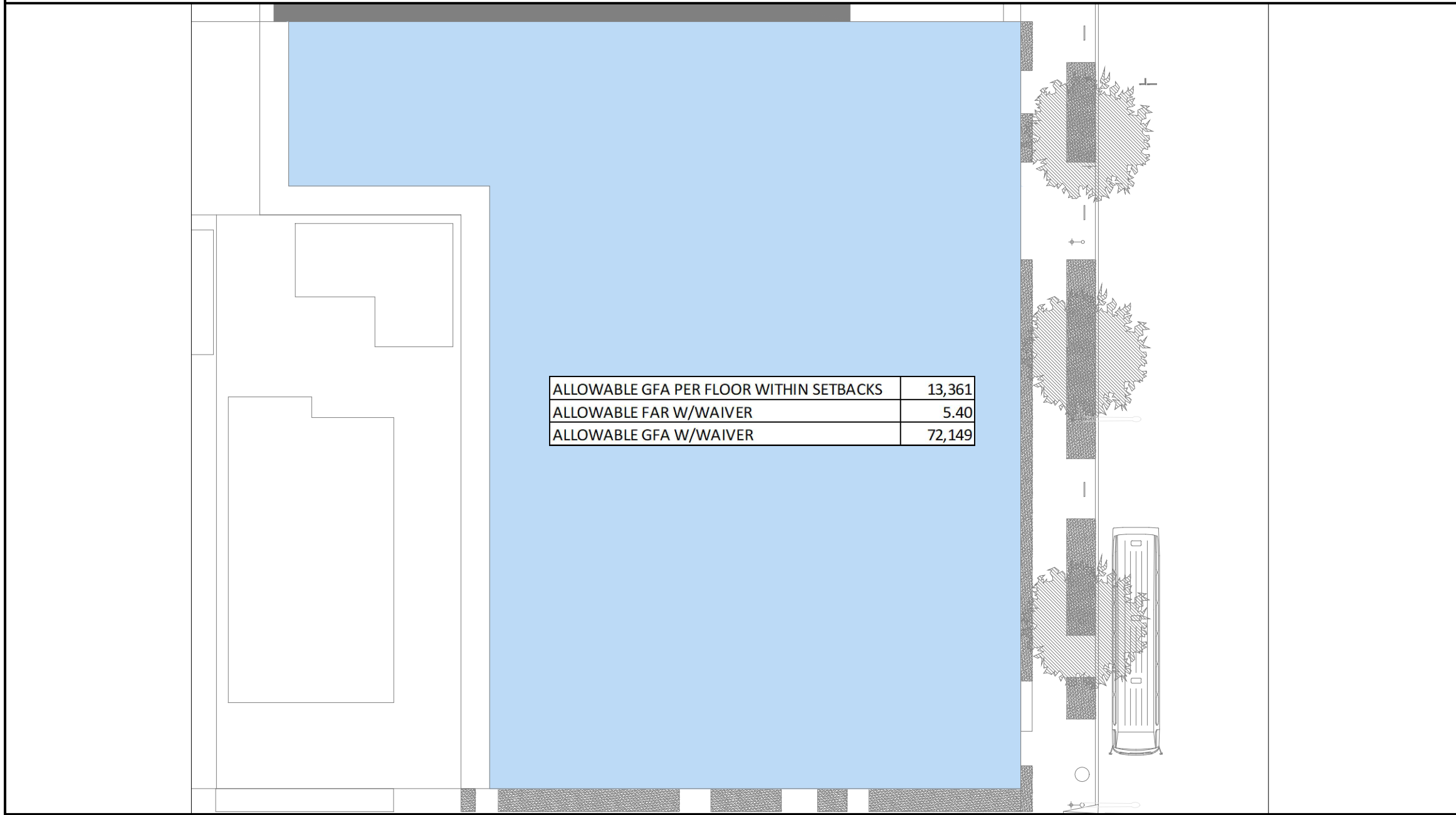
Under Section 65917, as a project which provides at 100% affordable units, the project is eligible for four incentives or concessions which result in identifiable and actual cost reductions. As such, the project proposes the following two cost reduction concessions:

- Cost Reduction Concession #1 - The project requests a cost-reduction Concession to reduce the Open Space requirement from 2,160 sf to 1,484 sf to eliminate the costs of a roof deck that would otherwise be required.
- Concession #2 has been removed. Previously this concession was used for a reduction in parking which is no longer required per California State AB-2097.

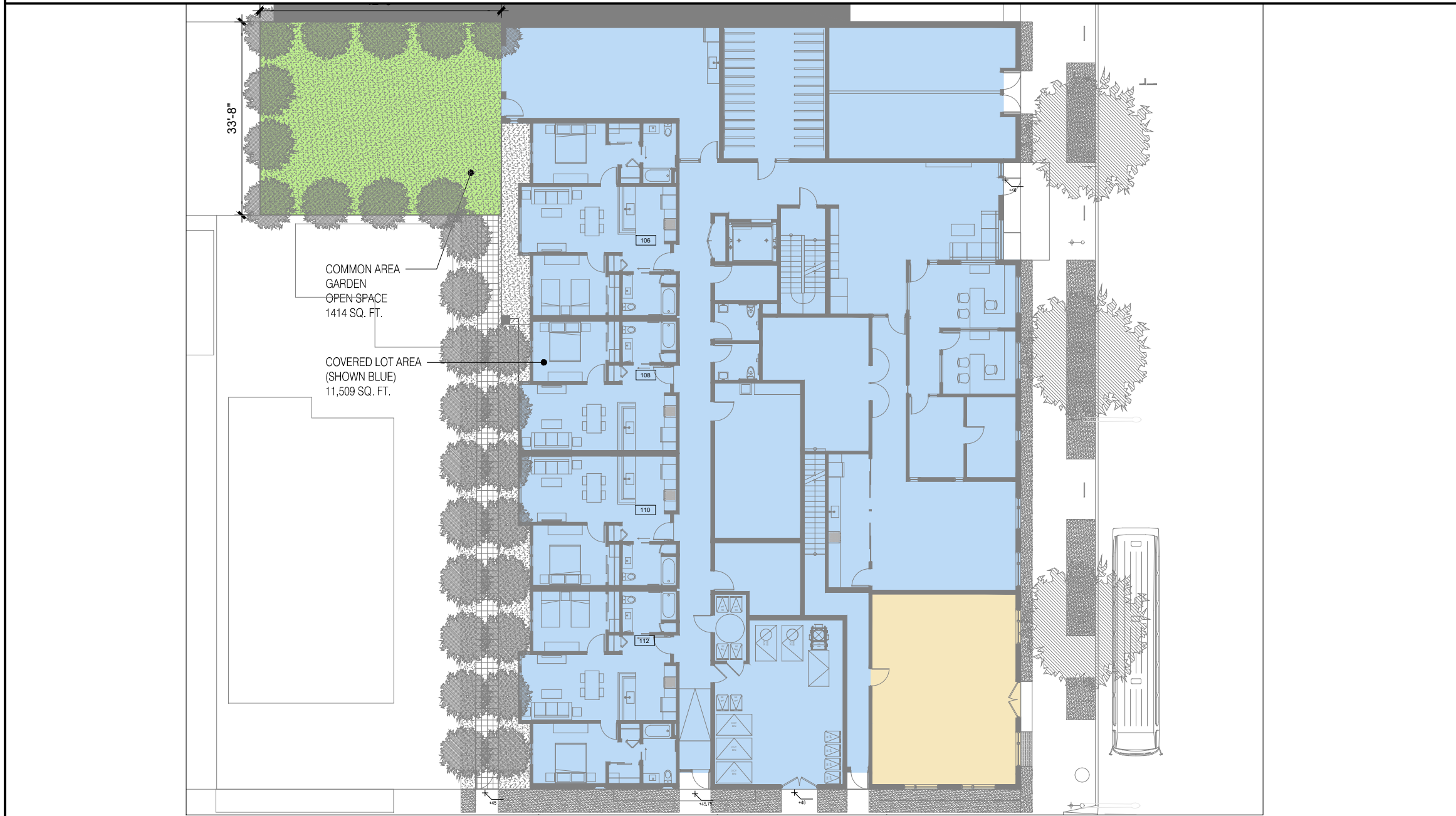
ZONING MAP



ALLOWABLE DENSITY BONUS GFA CALCULATIONS



OPEN SPACE & LOT COVERAGE DIAGRAM



SB-35 / STATE DENSITY BONUS SUMMARY

SB-35 / STATE DENSITY BONUS	SB-35 & DB PERMITTED / REQUIRED	PROPOSED	NOTES
PERCENTAGE OF AFFORDABLE UNITS PROVIDED	100%	100%	65915(b)(1)(G) [Exclusive of Manager's Unit]
NUMBER OF AFFORDABLE UNITS PROVIDED	53	53	65915(b)(1)(G) [Exclusive of Manager's Unit]
ALLOWABLE DENSITY	71 UNITS	54 UNITS (53-AFFORDABLE UNITS PLUS 1 MANAGER'S UNIT)	Allowable per 65915(f)(3)(D)(i); See A0.3 for calculations
AWARDED NUMBER OF CONCESSIONS	4	1	65915(d)(2)(D) Four incentives or concessions for projects meeting the criteria of subparagraph (G) of paragraph (1) of subdivision (b).
REQUESTED CONCESSIONS			
CONCESSION #1: OPEN SPACE	AREA	AREA	The Concession to reduce the open space requirement results in a self-evident cost-reduction because without the concession, the project would need to bear the expense of the roof deck.
CONCESSION #2	NOT USED	NOT USED	
CONCESSION #3	NOT USED	NOT USED	
CONCESSION #4	NOT USED	NOT USED	
REQUESTED WAIVERS			
FAR	5.40	4.15	FAR standard of 3.0 would have the effect of physically precluding the construction of the development at the proposed/allowable density
ALLOWABLE STORIES	8-STORIES	6-STORIES	Allowable per 65915(f)(3)(D)(i); See A0.3 for calculations. Height & story increases are dependent on the stores/height required to accommodate the allowable density bonus units.
ALLOWABLE HEIGHT	86'-6"	68'-0" TO TOP OF PARAPET	Allowable per 65915(f)(3)(D)(i); See A0.3 for calculations. Height & story increases are dependent on the stores/height required to accommodate the allowable density bonus units.

ZONING SUMMARY

	BASE ZONING PERMITTED/ REQUIRED	SB35 / DENSITY BONUS PERMITTED/ REQUIRED	PROPOSED	NOTES
NUMBER OF DWELLING UNITS	N/A	N/A	54	COMPLIES
COMMERCIAL AREA	N/A	N/A	896	COMPLIES
PARKING (SEE PARKING WORKSHEET)	54	NONE REQUIRED	0	COMPLIES
ON-STREET BIKE PARKING (1/2,000 SF OF COMMERCIAL AREA)	NONE REQUIRED	NONE REQUIRED	6	COMPLIES
INTERIOR SECURED BIKE PARKING	NONE REQUIRED	NONE REQUIRED	56	COMPLIES
FRONT YARD SETBACK (DELEWARE)	0'	0'	0'	COMPLIES
STREET SIDE YARD SETBACK (SAN PABLO)	0'	0'	0'	COMPLIES
SIDE YARD SETBACK (WEST)	5'	5'	VARIES 7' TO 28'-6"	COMPLIES
REAR YARD SETBACK (NORTH)	0'	0'	VARIES 0' TO 5'	COMPLIES
BUILDING HEIGHT	50'	86'-6" W/ WAIVER	68'-0"	COMPLIES W/ WAIVER
BUILDING STORIES	4	8 W/ WAIVER	6	COMPLIES W/ WAIVER
LOT AREA	14,204	14,204	14,204	COMPLIES
LOT AREA (ACRES)	0.33	0.33	0.33	COMPLIES
GROSS FLOOR AREA			58,909	COMPLIES
LEVEL 6			9,480	COMPLIES
LEVEL 5			9,480	COMPLIES
LEVEL 4			9,480	COMPLIES
LEVEL 3			9,480	COMPLIES
LEVEL 2			9,480	COMPLIES
LEVEL 1			10,613	COMPLIES
LEVEL 1 COMMERCIAL			896	COMPLIES
BUILDING FOOTPRINT			11,509	COMPLIES
LOT COVERAGE	100%	100%	81%	COMPLIES
USABLE OPEN SPACE (SEE TABLE)	2160	1,484 SF W/ CONCESSION	1,484 SF	COMPLIES W/ CONCESSION
BASE PROJECT FAR	3	5.40 W/ WAIVER	4.15	COMPLIES W/ WAIVER

DWELLING UNIT TABLE

UNITTYPE	STUDIO	1-BED	2-BED	3-BED	TOTAL
LEVEL 6	1	3	3	3	10
LEVEL 5	1	3	3	3	10
LEVEL 4	1	3	3	3	10
LEVEL 3	1	3	3	3	10
LEVEL 2	1	3	3	3	10
GROUND	0	2	2	0	4
TOTAL	5	17	17	15	54
PERCENTAGE OF TOTAL	9%	31%	31%	28%	72%
	5	17	34	45	101

PARKING CALCULATIONS

	QNTY	REQUIRED PARKING FACTOR	PER	SPACES	PROVIDED PARKING SPACES
RESIDENTIAL UNITS (1/UNIT)	54	0	1	0	0
COMMERCIAL AREA	896	2	1000	2	0
TOTAL PARKING				2	0

OPEN SPACE TABLE

	UNITS	REQUIRED USABLE OPEN SPACE AREA/UNIT	AREA	PROVIDED OPEN SPACE AREA
RESIDENTIAL UNITS (1/UNIT)	54	40	2,160	1,484 SF W/ CONCESSION

REFERENCE TOTAL LANDSCAPE AREAS PROVIDED

LOCATION	QUALIFYING OPEN SPACE	LANDSCAPED AREA	LANDSCAPED %
GROUND LEVEL USABLE OPEN SPACE	1,484	597	40.23%
GROUND LEVEL LANDSCAPED GARDEN PATH	-	1,031	
PODIUM LEVEL LANDSCAPED AREA	-	2,243	
TOTAL	1,484	3,871	
OPTIONAL VOLUNTARY ROOF DECK	1,980	1,980	

ROOFTOP ELEMENTS CALCULATIONS

	PROPOSED	ALLOWABLE
LEVEL 6	9,480	
LEVEL 5	9,480	
LEVEL 4	9,480	
LEVEL 3	9,480	
LEVEL 2	9,480	
LEVEL 1	10,613	
AVERAGE AREA	9,669	
TOTAL AREA OF ROOFTOP ARCHITECTURAL ELEMENTS EXCEEDING HEIGHT LIMIT	500	1,450
% AREA OF ROOFTOP ARCHITECTURAL FEATURES EXCEEDING HEIGHT LIMIT	5.2%	15.0%

TRACHTENBERG
ARCHITECTS

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11.11.2020 SB-35 ZONING SUBMITTAL

02.18.2021 SB-35 RESUBMITTAL

07.24.2023 SB-35 MODIFICATIONS

ALL DRAWINGS AND WRITTEN MATERIAL APPEARING
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